

[doc. web n. 10043077]
Provision of May 23, 2024
Register of provisions
No. 307 of May 23, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter referred to as the "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of
personal data, hereinafter referred to as the "Code") as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation of national legislation to the provisions of
Regulation (EU) 2016/679";

HAVING REGARD to the note with the inspection findings carried out
by the Bari Police Headquarters – Sectional Police Station "Bari Nuova Carrassi", on September 28,
2023, at the public establishment named "Pescheria Da GINO", which confirmed the presence of a
surveillance system, active and functioning, for which there was no information notice pursuant to
Article 13 of the Regulation;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation No. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

WHEREAS

1. The findings of the Bari Police Headquarters and the initiation of the procedure.

With a note received on September 28, 2023 (Prot. No. Cat. II/203/M.P./NM-1568), the Bari Police
Headquarters – Sectional Police Station "Bari Nuova Carrassi" – transmitted to this Authority the
findings of an inspection carried out on September 28, 2023, by the aforementioned Police Body, at
the public establishment named "Pescheria Da GINO", attributable to the sole proprietorship "Luigi De
Benedictis" (VAT No. 05996330725) with legal and operational headquarters in Bari, at Via
Salamandra 46.

During the inspection, the State Police verified the presence of a surveillance system consisting of 3
cameras, regularly functioning, in the absence of suitable information signs regarding the presence of
the cameras.

In light of the processing of personal data carried out through the aforementioned system, whose
ownership was identified as belonging to the above-mentioned sole proprietorship, the absence of the
information notice pursuant to Article 13 of Regulation (EU) 679/2016 was established, in violation of
the provisions regarding the processing of personal data.

The Office, based on the findings carried out as per the aforementioned report, proceeded to notify,
with a note dated November 30, 2023 (Prot. No. 159926/2023), the sole proprietorship of the initiation
of the procedure for the adoption of measures pursuant to Articles 58, paragraph 2, and 83 of the
Regulation, in accordance with the provisions of Article 166, paragraph 5, of the Code, in relation to the
violation of Article 13 and Article 5, paragraph 1, letter a), of the Regulation.

The aforementioned sole proprietorship, despite being informed of the possibility of submitting
defensive writings or documents in relation to the sanctioning procedure against it, did not provide any
documentation in this regard.

2. The legal framework of the processing carried out.

Given that the use of surveillance systems constitutes a processing of personal data pursuant to Article 4, No. 2, of the Regulation, it is noted that such processing must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, the principle of transparency which presupposes that “data subjects must always be informed that they are about to enter a monitored area.”

For this purpose, therefore, with particular reference to processing carried out through surveillance systems, it is necessary for the data controller to prepare suitable information signs according to the indications contained in point 3.1. of the provision on surveillance - April 8, 2010 [1712680] (in this sense also the FAQs on surveillance published on the Authority's website) so that data subjects are made “aware of the fact that a surveillance system is in operation.”

Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, in point 7), specifies that “the most important information must be indicated [by the controller] on the warning sign itself (first level) while further mandatory details can be provided by other means (second level).”

The guidelines also provide that “Such information may be provided in combination with an icon to give, in a clearly visible, intelligible, and clearly legible manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information must be adapted to the various locations.”

The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance, before entering the monitored area (approximately at eye level) “to allow the data subject to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary.”

3. The outcome of the investigation and the sanctioning procedure.

Based on the assessment carried out, it has emerged that the video surveillance system, installed at the public establishment named “Pescheria Da GINO,” located in Bari, at via Salamandra 46, was active and functioning, and that the individuals entering the range of action of the aforementioned system did not receive any information regarding the processing of their personal data, as required by Article 5, paragraph 1, letter a) and Article 13 of the Regulation. Such conduct is therefore in contrast with what is established by Article 13 of the Regulation, according to which the data controller is required to provide the data subject with all the information related to the essential characteristics of the processing, as well as in violation of the general principle of transparency of processing, as per Article 5, paragraph 1, letter a) of the same Regulation.

As a result of the investigation and having established the unlawfulness of the conduct as described above, it must:

- be ordered to the data controller, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to bring the processing into compliance with the provisions of the Regulation, proceeding with the placement of suitable signs containing information on the processing as indicated in point 2 of this provision;
- an injunction order must be adopted pursuant to Article 58, paragraph 2, letter i) of the Regulation for the application of an administrative monetary sanction.

4. Injunction Order.

The Authority, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative monetary sanction provided for by Article 83, paragraph 5, letter b) of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the company through the video surveillance system, in the absence of the information referred to in Article 13 of the Regulation.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative monetary sanction and its quantification, considering that the sanction must be “effective, proportionate and dissuasive in each individual case” (Article 83, paragraph 1 of the

Regulation), it is represented that, in this case, the following circumstances have been taken into account:

- regarding the nature, gravity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility related to the failure to fulfill the obligation to provide information to the data subjects;
- the absence of specific previous violations by the company related to breaches of the data protection regulations;
- the circumstance that there has been no participation and cooperation with the Authority during the proceedings, resulting in the inability to verify that the legal obligations have been fulfilled.

In light of the aforementioned elements, evaluated as a whole, including the economic conditions of the offender determined based on the tax declaration for the year 2021, and the sanctions imposed by the Authority in similar cases, it is deemed appropriate to determine the amount of the monetary sanction at €1,000.00 (one thousand) for the violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation.

In this context, also considering the type of violation established, it is believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website should proceed.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

declares, pursuant to Articles 57, paragraph 1, letters a) and h) and 83, paragraph 5, letter b) of the Regulation, the unlawfulness of the processing carried out by the individual enterprise "Luigi De Benedictis" (VAT No. 05996330725) with legal and operational headquarters in Bari, at via Salamandra 46, through the use of the video surveillance system installed at the commercial establishment located at the same address, in the terms stated in the motivation, for the violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation;

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation, the individual enterprise "Luigi De Benedictis" (VAT No. 05996330725), to pay the sum of €1,000.00 (one thousand) as an administrative monetary sanction for the violation indicated in the motivation;

COMMANDS

the same enterprise to conform, pursuant to Article 58, paragraph 2, letter d) of the Regulation, the data processing carried out to the provisions of the Regulation, with reference to the placement, where it has not already done so, of suitable informational signs regarding the presence of cameras; to pay the sum of €1,000.00 (one thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the deadline of

pursuant to Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

ORDERS

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the Guarantor's website and considers that the conditions set forth in Article 17 of Regulation No. 1/2019 are met.

It is also ordered that the initiatives undertaken to implement the provisions of this decision be communicated and that adequately documented feedback be provided in accordance with Article 157

of the Code, within 60 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for in Article 83, paragraph 5, letter e) of the Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be submitted to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, May 23, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL

Mattei